

Amendment No. 1 to HB0785

Farmer
Signature of Sponsor

AMEND Senate Bill No. 1237

House Bill No. 785*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 40, Chapter 11, Part 3, is amended by adding the following new section:

40-11-314.

(a) Beginning October 25, 2025, every professional bondsman licensed to do business in this state shall file a quarterly report, not later than January 25, April 25, July 25, and October 25 of each year, with the department of revenue detailing the total number of bonds issued by the bondsman in the preceding quarter, the number of bonds issued in each county in which the bondsman operated, and the total amount of the bondsman's liability in each county.

(b) Beginning October 25, 2025, each clerk of a court that admits defendants to bail pursuant to part 1 of this chapter shall file a quarterly report, not later than January 25, April 25, July 25, and October 25 of each year, with the department of revenue detailing the total number of bonds accepted by the clerk from bondsmen and the total amount of the bonds accepted from bondsmen in the preceding quarter.

(c) The department of revenue may use the reports received from the bondsmen and court clerks to complete audits on the bail bonding tax required by § 67-4-803.

(d) Notwithstanding § 40-11-312, the failure to submit a report required by this section is not a criminal offense.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.